

BEFORE THE STATE BOARD OF PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2018-9015 & 2019-1627

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF MATTHEW ANGLEMAN,
LICENSE NO. LPC 14852,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Professional
Counselor Examiners ("Board") and Matthew Angleman ("Respondent"), as follows:

1. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in Colorado on August 23, 2018. Respondent's LPC license is now active with restrictions.
3. This Order is a full and final resolution of case numbers 2018-9015 and 2019-1627. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about December 13, 2018, Respondent underwent a mental status examination with Peer Assistance Services, Inc. ("PAS"). The evaluator concluded that Respondent only safe to practice as a LPC with reasonable skill and safety, with treatment and monitoring.
 - b. A urine drug test conducted at the time of the examination was positive for cocaine and alcohol.
 - c. On or around December 28, 2018, Respondent entered into a Non-Disciplinary Interim Cessation of Practice Agreement ("ICPA") with the

Board in case number 2018-9015. Respondent agreed not to practice as a LPC pending further evaluation and investigation by the Board.

d. Respondent has history of habitually using or abusing substances.

e. Respondent failed to maintain boundaries with clients and admitted to using drugs with a client.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated section 12-245-224(1)(e), (g)(l) and (i), C.R.S., which state:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article if he or she:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5);

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

6. By virtue of the admissions contained in paragraphs 4 and 5, Respondent is subject to the following disciplinary sanctions that the Board believes are necessary to protect the public health, safety, and welfare.

SUSPENSION

7. Respondent's license to practice professional counseling shall be suspended for a period of a minimum of six (6) consecutive months, commencing on the effective date of this Order or the date Respondent signs a contract with PAS ("PAS Contract"), whichever is later. The suspension shall continue until Respondent has met the conditions set forth in this Order for the lifting of the suspension.

8. During the suspension period, Respondent is prohibited from:

- a. Engaging in or performing any act constituting the practice of professional counseling in the state of Colorado; and
- b. Engaging in or performing any act constituting the practice of professional counseling in any other state, territory, federal enclave, or military facility under the authority of Respondent's Colorado LPC license.

REQUEST TO LIFT SUSPENSION

9. The suspension of Respondent's license to practice professional counseling shall continue until:
- a. Respondent formally requests in writing that the Board allow Respondent to resume the practice of professional counseling;
 - b. Respondent submits written proof satisfactory to the Board that Respondent has been in full compliance with his PAS Contract for a period of six (6) consecutive months after the effective date of this Order;
 - c. Respondent submits written proof satisfactory to the Board that Respondent is safe to resume practice as a LPC;
 - d. The Board reviews Respondent's request and determines to grant Respondent's request to resume practice;
 - e. The Board determines what additional terms, if any, are appropriate, for Respondent's return to practice and, if additional terms are necessary, a subsequent Order is executed by the parties specifying such terms; and
 - f. Respondent receives written notification from the Board that he may resume practice as a LPC.

10. The decision concerning whether or not to lift the suspension and, if so, under what terms, shall rest exclusively in the discretion of the Board.

PROBATION

11. Respondent's license to practice professional counseling shall be placed on probation for a minimum period of five (5) years, commencing from the effective date of this Order. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Respondent is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado;
- b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 12 and 13 of this Order; and
- c. Respondent is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

12. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete his PAS Contract for a minimum period of five (5) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

13. Respondent shall enter into his PAS Contract within fourteen (14) days from the effective date of this Order. Respondent agrees to cease the practice of professional counseling after fourteen (14) days until such time as Respondent enters into a contract with PAS.

a. Urine/Blood Screens. As a requirement of his PAS Contract, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

b. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Respondent.

c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will

execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.

d. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

14. During the period of suspension and probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug or controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

CONTINUING EDUCATION

15. Within two (2) years of the effective date of the Order, Respondent must successfully complete at least twenty (20) hours of Board-approved professional continuing education ("CE") courses in the area of ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory professional Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

16. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

17. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

18. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

19. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

20. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

21. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

22. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

23. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

24. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

25. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

26. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

27. This Order shall be admissible as evidence at any hearing held before the Board.

28. This Order shall be a public record in the custody of the Board.

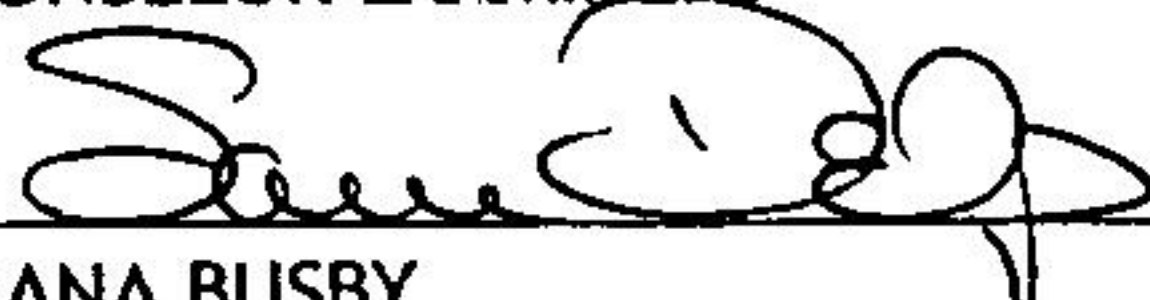
AGREED TO AND ACCEPTED BY:

RESPONDENT


MATTHEW ANGLEMAN
LPC 14852

AGREED TO AND ORDERED BY:

STATE BOARD OF PROFESSIONAL
COUNSELOR EXAMINERS


ARIANA BUSBY
Program Director

Effective this 28 day of
October, 2019.